

Court No. - 48

Case :- WRIT - C No. - 12303 of 2021

Petitioner :- Hari Lal

Respondent :- District Magistrate District Azamgarh And 2 Others

Counsel for Petitioner :- Virendra Pratap Pal, Vineet Kumar Yadav

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Munishwar Nath Bhandari, J.

Hon'ble Ajai Tyagi, J.

The counsel for petitioner is not available on the video link sent to him.

Accordingly, let this petition be listed on 15th July, 2021, as fresh.

In the meanwhile, learned counsel for the respondent no.3 would obtain instructions in the matter.

Order Date :- 23.6.2021

P.S.Parihar

Court No. - 3

Case :- WRIT - C No. - 12303 of 2021

Petitioner :- Hari Lal

Respondent :- District Magistrate District Azamgarh And 2 Others

Counsel for Petitioner :- Virendra Pratap Pal,Vineet Kumar Yadav

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

1. Present petition has been filed for the following relief:

i) Issue a writ order or direction in the nature of certiorari to quash the impugned recovery certificate dated 10.08.2020 (filed as Annexure No.4 to this writ petition).

ii) Issue a writ order or direction in the nature of certiorari to quash the impugned order dated 04.02.2021 passed by the respondent no.3 (filed as Annexure no.7 to this writ petition).

iii) Issue a writ order or direction in the nature of mandamus directing the respondent authority do not adopt coercive measure for recovery of the amount by way of arrears of land revenue or arrest."

2. It emerges from the statement of learned counsel for the respondent-corporation that the order dated 04.02.2021 passed by the respondent no.3 is in the nature of final order contemplated under Clause 6.8(d)(i) of the UP Electricity Supply Code, 2005.

3. Relying on the same, it has been contended that the petitioner has a remedy of statutory appeal. The objection raised is well founded. Accordingly, the writ petition is **dismissed**, on the ground of alternative remedy. It is further provided that in case the petitioner files such appeal within a period of two weeks from today, alongwith a copy of this order, the same shall be decided, as expeditiously as possible, without raising any objection.

Order Date :- 15.7.2021

S.Chaurasia